

COMMONWEALTH OF MASSACHUSETTS

MIDDLESEX, ss.

SUPERIOR COURT
CIVIL ACTION NO. 2581CV02967

MILLSTONE CONCORD CONDOMINIUM
By Its Board
Plaintiff

v.

JULIA S. SHAKOLININA
Defendant

and

MIDDLESEX SAVINGS BANK;
MASSACHUSETTS DEPARTMENT OF
HOUSING AND COMMUNITY
DEVELOPMENT; AND TOWN OF
CONCORD
Parties-in-Interest

RECEIVED

12/1/2025

COMPLAINT
IN REM PROCEEDING

PRELIMINARY STATEMENT

1. This is an In Rem action brought by the Plaintiff, as the governing board of the unit owners organization of a condominium: (a) pursuant to M.G.L. c. 183A, §6(c) on an In Rem basis against the unit for unpaid common expense assessments; and (b) pursuant to M.G.L. c. 183A, §6(a) and §6(c) and M.G.L. c. 254, §5 and §5A, to establish and enforce a lien for unpaid common expense assessments. This action further seeks a determination of the priority of the Plaintiff's lien pursuant to M.G.L. c. 183A, §6(c).

JURISDICTION

2. This Honorable Court has jurisdiction over this matter pursuant to the express terms of M.G.L. c. 254, §5 and the decision in Residences at Cape Ann Heights Condominium v. Brian Halupowski, No. 2012-P-1689 (MA Appeals Court February 21, 2013).

PARTIES

3. The Governing Board of the Millstone Concord Condominium (hereinafter “Plaintiff”), are the duly elected/appointed members of the governing body of the Millstone Concord Condominium created by constituent documents recorded with the Middlesex County Registry of Deeds. The Millstone Concord Condominium is in Concord, Middlesex County, Massachusetts. Said Condominium was created by Master Deed dated December 14, 2015, and recorded with the Middlesex South Registry of Deeds in Book 66521, Page 1 and by Declaration of Trust dated December 14, 2015, and recorded with the said Registry in Book 66521 Page 29. Plaintiff’s mailing address is 40 Ingham Lane Concord, MA 01742. Plaintiff is the unit owner’s association organized pursuant to M.G.L. c. 183A. Plaintiff brings this action pursuant to their powers in the constituent documents of the Condominium and/or as contained in M.G.L. c. 183A, §10(b)(4). Plaintiff also brings this action on behalf of all other parties in interest pursuant to M.G.L. c. 254, §5.

4. The Defendant, JULIA S. SHAKOLININA (hereinafter “Defendant”) is the record owner of 15 Ingham Lane, Unit 2 located at the Millstone Concord Condominium (hereinafter “Unit”), pursuant to a Deed dated July 28, 2016, and recorded with the Middlesex South Registry of Deeds in Book 67701, Page 420. The Defendant maintains the address of 15 Ingham Lane Unit 2 Concord, MA 01742.

5. The Party-in-Interest, MIDDLESEX SAVINGS BANK (hereinafter “First Mortgagee”) maintaining a business address of 6 Main Street, Natick, MA 01760, is the holder of a first mortgage of record upon the Unit 2 dated July 28, 2016, and recorded with the Middlesex South Registry of Deeds in Book 67701, Page 446.

6. The Party-in-Interest, MASSACHUSETTS HOUSING PARTNERSHIP FUND BOARD maintaining a business address of 100 Cambridge Street Suite 300 Boston, MA 02114, is the holder of a “Soft Second Subsidy Mortgage” of record upon the Unit 2 dated 07 July 28, 2016, and recorded with the Middlesex South Registry of Deeds in Book 67701, Page 461.

6. The Party-in-Interest, TOWN OF CONCORD, maintaining the business address of c/o Town Manager P. O. Box 535, 22 Monument Square Concord, MA 01742, is the holder of an interest in the subject unit by way of the Affordable Housing Deed Rider and the Affordable Housing Restriction dated July 22, 2016, recorded with the Middlesex South Registry of Deeds in Book 67701, Page 420.

FACTS

7. Pursuant to M.G.L. C. 183A, §6(a) and §6(c) Plaintiff has an automatic, statutory lien against the Unit for common expense assessments from the time such assessments become due.

8. Pursuant to M.G.L. c. 183A, §6(c), Plaintiff's lien shall be enforced in the manner provided in M.G.L. c. 254, §5 and §5A.

9. Pursuant to M.G.L. c. 254, §5A, when the Court determines the amount of the Plaintiff's lien, it shall enter an order authorizing the sale of the real estate to satisfy the lien.

10. Pursuant to M.G.L. c. 183A, §6, and the applicable provisions of the Plaintiff's constituent documents and records, there is a lien against the Unit in the amount of \$1,637.66 for assessments levied between the months of June 2025 and November 2025. NOTE: THE AMOUNT SET FORTH ABOVE DOES NOT INCLUDE THE ATTORNEY'S FEES OR COSTS ASSOCIATED WITH THIS LIEN ENFORCEMENT ACTION.

11. Pursuant to M.G.L. c. 183A, §6(a) and §6(c) the Plaintiff's lien shall include attorney's fees and costs incurred by the Plaintiff in pursuing this matter.

12. Pursuant to M.G.L. c. 183A, §6(c), the Plaintiff did give the Defendant notice by certified and first-class mail.

13. Pursuant to M.G.L. c. 183A, §6(c), the Plaintiff did give notice to the First Mortgagee, by certified and first-class mail, of their intent to file this action.

CAUSES OF ACTION COUNT I - AGAINST THE UNIT

14. Plaintiff repeats and realleges the statements set forth in the paragraphs above as if fully set forth herein and incorporates the same herein by reference.

15. Pursuant to the provisions of M.G.L. c. 183A, §6(a) and §6(c), the amount due as set forth above plus Plaintiff's attorney's fees and costs in this matter constitute a lien upon the Unit.

16. Pursuant to M.G.L. c. 254, §5A, when the Court determines the amount of the Plaintiff's lien, it shall enter an order authorizing the sale of the real estate to satisfy the lien.

COUNT II - ESTABLISHING THE PRIORITY OF THE LIEN

17. Plaintiff repeats and realleges the statements set forth in the paragraphs above as if fully set forth herein and incorporates the same herein by reference.

18. Pursuant to the provisions of M.G.L. c. 183A, §6(c), Plaintiff's lien on the Unit has priority over all other liens and encumbrances except (a) liens and encumbrances recorded prior to the recording of the aforesaid Master Deed, (b) liens for real estate taxes and other municipal assessments or charges, and (c) any first mortgage of record; provided, however, that as to the first mortgage of record the Plaintiffs' lien is prior thereto to the extent of monthly common expense assessments which became due during the six (6) months prior to the institution of this action plus attorneys' fees and costs incurred by the Plaintiffs in this matter.

19. Based upon the above, that portion of Plaintiff's lien representing the common expense assessments for the six (6) month period preceding this action plus Plaintiff's attorney's fees and costs incurred herein take priority over the mortgage of the First Mortgagee Party-in-Interest.

PRAYER FOR RELIEF

WHEREFORE the Plaintiff prays that this Honorable Court enter an Order:

1. Declaring that there is a lien upon the Unit in an amount established at a hearing;
2. Declaring that the lien is entitled to priority as provided for by law and as set forth above;
3. Ordering the sale of the Unit to satisfy, in whole or in part, the lien;
4. Granting possession of the Unit as a part of said sale; and
5. Granting such other relief as may be in the best interest of justice and judicial economy.

MILLSTONE CONCORD CONDOMINIUM
By Its Attorney,

Dated: November 26, 2025

/s/ Gina M. Desrochers
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